

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Applications nos. 28884/14 and 33892/14
Lalandar Shabuddin Gizi NOVRUZOVA against Azerbaijan
and Sabuhi Yagub Oglu BAYRAMOV and Rashad Najmaddin Oglu GURBANLI against Azerbaijan

The European Court of Human Rights (Fifth Section), sitting on 5 December 2017 as a Committee composed of:

Nona Tsotsoria, *President,*
Síofra O'Leary,
Lətif Hüseynov, *judges,*

and Anne-Marie Dougin, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on 1 April 2014 and 23 April 2014 respectively,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicant in the first case (application no. 28884/14), Ms Lalandar Novruzova, is an Azerbaijani national, who was born in 1992 and lives in Baku.

2. The applicants in the second case (application no. 33892/14), Mr Sabuhi Bayramov and Mr Rashad Gurbanli, are Azerbaijani nationals, who were born in 1983 and 1990 respectively and live in Goychay and Baku respectively.

3. The applicants in both cases were represented before the Court by Mr I. Aliyev, a lawyer practising in Azerbaijan.

4. The Azerbaijani Government ("the Government") were represented by their Agent, Mr Ç. Asgarov.

5. The applicants in both cases complained under Article 11 of the Convention that the refusals by the State authorities to register associations which they had founded had amounted to a violation of their right to

freedom of association. They also complained that the authorities had seized the case files relating to their applications from the office of Mr Aliyev, their representative, infringing their right of individual application under Article 34 of the Convention. In addition, the applicants in application no. 33892/14 complained under Article 6 of the Convention that they had not been notified of the Supreme Court hearing in the civil proceedings they had instituted in connection with the refusal to register their association.

6. On 26 January 2017 the Court decided to give notice to the Government of the applicants' complaints detailed above.

7. On 30 May 2017 the Government submitted to the Registry their observations on the admissibility and merits of the applications. These were forwarded to the applicants, who were invited to submit observations in reply by 13 July 2017.

8. On 13 July 2017 the applicants' representative informed the Court that the applicants wanted to withdraw their applications since they no longer intended to pursue them.

THE LAW

9. In the light of the foregoing, and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention or its Protocols, the Court, in accordance with Article 37 § 1 (a) of the Convention, considers that it is no longer justified to continue the examination of the applications.

In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Decides to strike the applications out of its list of cases.

Done in English and notified in writing on 11 January 2018.

Anne-Marie Dougin
Acting Deputy Registrar

Nona Tsotsoria
President